

Court No. - 2

Case :- WRIT - C No. - 54476 of 2010

Petitioner :- Rajendra Kumar Gupta

Respondent :- Dvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Put up on 14.9.2010 as a fresh case so as to enable Sri Rajesh Tripathi, learned counsel for the contesting respondents to obtain instructions or file counter affidavit.

Sri Rajesh Tripathi shall specify as to whether any assessment order has been passed or not and if the same has been passed, he shall produce the copy of the same.

Order Date :- 7.9.2010

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Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner as well as Sri Rajesh Tripathi, learned counsel appearing for the contesting respondents no.1 and 2 and have perused the record.

Earlier time was granted to Sri Rajesh Tripathi, learned counsel to obtain instructions or file counter affidavit and also to produce a copy of the assessment order, if any, passed by the respondents. He stated that he has received instructions.

However, both the parties agree that this writ petition may be disposed of at this stage. Accordingly, with the consent of the learned counsel for the parties, this writ petition is being disposed of finally at this stage without calling for counter affidavit.

The case of the petitioner is that he is aggrieved by the assessment bill dated 16.8.2010 for an amount of Rs. 2,71,476.34. It is submitted by the learned counsel for the petitioner that the respondents-Dakshinanchal Vidyut Vitran Nigam Limited is treating the case of the petitioner as a case of theft of electricity and after conducting an inspection on 12.8.2010 they straightway issued a final bill dated 16.8.2010, which is impugned in this writ petition.

Learned counsel for the petitioner states that the procedure is laid down in the Electricity Code especially in Clause 8.1(b) which has not been followed prior to issuing the assessment bill.

Sri Rajesh Tripathi, learned counsel does not dispute this position that prior to the issuance of the bill the said provisions have not been complied with nor any notice was given to the petitioner before issuing the said bill. He further stated that the respondents-Dakshinanchal Vidyut Vitran Nigam Limited will first issue fresh provisional bill inviting objection in accordance with the U.P.Electricity Code, 2005 and after considering the objection shall thereafter pass final assessment order.

In view of the aforesaid statement of Sri Rajesh Tripathi, learned counsel for the respondents-Corporation, the order dated 16.8.2010 is quashed with the direction that the respondents-Corporation shall now proceed in accordance with law and the provisions of the U.P.Electricity Supply Code, 2005 and thereafter shall pass a fresh assessment order in the case of the petitioner.

The writ petition stands allowed to the extent indicated above.

Order Date :- 29.9.2010
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